

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CLCL039831: JP MORGAN CHASE BANK NA vs AMBER GRAHAM

07/09/2026 in Department 42

Motion to Vacate Judgment

Motion: Defendant Amber Graham's Motion to Set Aside Default and Default Judgment
(*Unopposed*)

Tentative Ruling:

The Court is inclined to rule as follows:

Defendant Amber Graham's Motion to Set Aside Default and Default Judgment is DENIED per Code of Civil Procedure section 473, subdivision (b). Default and default judgment were entered over six months ago. Thus, the motion cannot be granted pursuant to Code of Civil Procedure section 473, subdivision (b).

Defendant to give notice of the Court's ruling.

Grounds:

The moving defendant is seeking an order to set aside the default and default judgment solely under Code of Civil Procedure 473, subdivision (b). Defendant contends that she was not served and that she was not evading service.

Discussion:

Defendant is arguing that relief is proper under Code of Civil Procedure section 473 subdivision (b). A proposed answer is attached. The motion is not opposed.

The Court finds that because Defendant's motion is untimely under Code of Civil Procedure section 473 subdivision (b), it must be denied.

A. General Overview of Relevant Law

In furtherance of justice, the court may relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against that party as a result of mistake, inadvertence, surprise, or excusable neglect. This relief is available under the discretionary provisions of Code of Civil Procedure section 473, subdivision (b).

A motion for discretionary relief under section 473(b) must be filed within a reasonable time, but in no event more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. The moving party must also file, together with the notice of motion, a copy of the answer, motion, or other pleading proposed to be filed in the action.

B. Application

Here, the motion is untimely. The default and default judgment were entered on October 16, 2025. Accordingly, any motion for discretionary relief under Code of Civil Procedure section 473, subdivision (b), was required to be filed no later than April 16, 2026. Defendant did not file the present motion until June 4, 2026, more than six months after entry of the default and default judgment. The motion is therefore untimely and must be denied.